

2015 WL 4757457 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Akeem DANZELL, Plaintiffs,

v.

CITY OF NEW YORK, New York City Police Department, New York City Police Officer **Max Rolffot**, Shield 1669 of the 70 Command and New York City Police Officers John Doe, Defendants.

No. 0509516-2015.
August 3, 2015.

Summons

Law Offices of Jason A. Steinberger, LLC, 910 Grand Concourse, Suite 1C, Bronx, NY 10451, (718) 585-2833, for plaintiff.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Kings County.

Dated: July 31, 2015 Bronx, NY

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Akeem Danzell, (hereinafter referred to as "DANZELL") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, New York City Police Officer **Max Rolffot**, Shield 1669 of the 70 Command, (hereinafter referred to as "ROLFFOT") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, New York City Police Officers John Doe, the officers involved in the arrest of DANZELL, (hereinafter referred to as "DOES") were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about May 15, 2014 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. On or about February 25, 2014 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That on or about May 6, 2014 at approximately 8:00PM in the vicinity of East 21 Street and Ditmas Avenue, Kings County NY, Plaintiff was standing with a group of his friends without engaging in any unlawful or illegal behavior when ROLFFOT and DOES approached Plaintiff and his friends.
9. That ROLFFOT and DOES stated, "GET THE FUCK OFF MY BLOCK."
10. That ROLFFOT and DOES demanded that one of Plaintiffs friends provide identification.
11. That the aforementioned friend provided identification and then began to record the incident with his cellular phone.
12. That ROLFFOT and DOES began striking said friend.
13. That Plaintiff recorded the arrest of his friend.
14. That Plaintiff walked away and ROLFFOT and DOES assaulted Plaintiff by striking and kicking him about his head, body and extremities.
15. That Plaintiff was handcuffed and arrested.
16. That at no time was Plaintiff engaged in any unlawful or illegal activity.
17. That after Plaintiff was arrested he was transported to the 70 police precinct.
18. That when Plaintiff was transported to the 70 police precinct he was placed in a cell with other males for several hours.
19. That after being held I the 70 police precinct, Plaintiff was taken to and reated at local Kings County hospital.
20. That after being treated the local Kings County hospital for several hours he was removed to the 70 police precinct.
21. That after being held at the 70 police precinct, Plaintiff was transferred to Kings County Central Booking located at 120 Schermerhorn Street, Kings County NY.

22. That on May 7, 2014 Plaintiff was arraigned on charges of Unlawful Assembly, Disorderly Conduct, Obstructing Governmental Administration and Resisting Arrest on docket 2014KN032875.

23. That at the time of his arraignment, bail was set for client and he was remanded to a Kings County Central Booking.

24. That after being remanded to Kings County Central Booking, Plaintiff was released on May 7, 2014.

25. That on and between May 7, 2014 and March 13, 2015, Plaintiff made several court appearances until the matter was dismissed.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

26. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from the day of his arrest and onward.

29. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

30. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

31. That as a result of Defendants' actions, Plaintiff missed several days of work.

32. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

33. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

35. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

36. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through

37, as if more fully stated herein at length.

39. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, the ROLFFOT and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that the ROLFFOT and DOES were committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

45. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

47. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

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